

Smt. Dhanalakshmi M vs Venkatesh V.K on 3 October, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:35597
CP No. 273 of 2023
C/W CP No. 122 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 3RD DAY OF OCTOBER, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT

CIVIL PETITION NO. 273 OF 2023

C/W

CIVIL PETITION NO. 122 OF 2023

BETWEEN:

1. SMT. DHANALAKSHMI M
W/O VENKATESH,
D/O LATE MUDALAGIRIYAPPA
AGED ABOUT 35 YEARS,
R/A LAKSHMINARASAPPA BUILDING,
NATIONAL SCHOOL ROAD,
YELLAPURA, TUMKURU.

PRESENTLY R/AT NO.46,
F E LANE, OLD AIR PORT ROAD,
SRI RAMANAGARI,
HAL POST,
BANGALORE-560017.

Digitally signed by
A K CHANDRIKA

Location: High
Court of
Karnataka

2. VISRUTH
S/O VENKATESH,
AGED ABOUT 10 YEARS,
3. JAHNAVI
D/O VENKATESH,
AGED ABOUT 7 YEARS,

THE PETITIONERS NO.2 & 3 ARE MINORS
REP. BY NATURAL GUARDIAN MOTHER
DHANALAKSHMI

...PETITIONERS
(COMMON IN BOTH PETITIONS)

(BY SMT. NAGAMANI V., ADV.)

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AND:

VENKATESH V.K.
S/O KRISHNAPPA,
AGED ABOUT 39 YEARS
R/O C/O RAMESH BUILDING,
NEAR GANESH TEMPLE ARCH,
SHANTHINAGAR, TUMAKURU,
PH.9036616644.

PRESENTLY R/AT HOUSE NO.1,
BAAR LINE ROAD,
TUMKURU-572106.

PRESENTLY WORKING AT
AS DRIVER/CONDUCTOR IN
KSRTC BUS DEPOT NO.1,
94C5+8HF, ANTHARASANAHALI,
TUMAKURU-572106.

...RESPONDENT
(COMMON IN BOTH PETITIONS)

(BY SRI. MADHUSUDHAN M N, ADV.)

C.P.NO.273/2023 IS FILED UNDER SECTION 24 OF THE CPC,
PRAYING TO TRANSFER THE CASE FILED U/S 10 GAURDIAN AND
WARDS ACT IN G AND WC NO. 4/2023 PENDING BEFORE THE I
ADDL. PRL. JUDGE FAMILY COURT TUMKUR TO THE HON'BLE VI
ADDL. PRL. FAMILY COURT PENDING UNDER SECTION 125 IN CRL
MISC.NO.94/2023 OF CR.P.C. TO MEET THE ENDS OF JUSTICE.

C.P.NO.122/2023 IS FILED UNDER SECTION 24 OF THE CPC,
PRAYING TO PLEASED TO TRANSFER THE DIVORCE CASE
M.C.NO.273/2022 PENDING BEFORE THE PRL.JUDGE, FAMILY
COURT, TUMAKURU TO VI ADDL. PRL. FAMILY COURT, BANGALORE
TO MEET THE ENDS OF JUSTICE.

THESE PETITIONS, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

The petitioner in both the civil petitions is before this Court under Section 24 of CPC with a prayer to transfer G & WC.No.4/2023 filed under Section 10 of the Guardians and Wards Act, 1890 (for short, '1890 Act') pending on the file of the I Additional Principal Judge, Family Court at Tumakuru and M.C.No.273/2022 filed under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 (for short, '1955 Act') pending on the file of the Principal Judge Family Court, Tumakuru to the VI Additional Principal Family Court at Bengaluru.

2. Heard the learned counsel Smt.Nagamani.V., for petitioner/wife and learned counsel Sri.Madhusudhan.M.N., for respondent/husband. Perused the Civil Petition papers.

3. Learned counsel for the petitioner/wife would submit that respondent/husband has initiated G & WC.No.4/2023 on the file of the Principal Judge, Family Court at Tumakuru under Section 10 of 1890 Act with a NC: 2023:KHC:35597 prayer for custody of children and respondent/husband has also instituted M.C.No.273/2022 on the file of the Principal Judge, Family Court at Tumakuru for dissolution of marriage under Section 13(1)(ia) and (ib) of 1955 Act. Further it is submitted that petitioner/wife has initiated CrI.Misc.No.256/2022 under Domestic Violence Act at Bengaluru. In addition, petitioner/wife has also initiated CrI.Misc.No.94/2023 under Section 125 of Cr.P.C., on the file of the VI Additional Principal Judge, Family Court at Bengaluru.

4. Learned counsel would submit that children of petitioner/wife and respondent/husband are staying with their grandmother at Tumakuru and they are studying at Tumakuru. The petitioner/wife is residing at Bengaluru, since she is working at Bengaluru. Learned counsel would invite attention of this Court to rent agreement dated 30.12.2022 to say that petitioner/wife is residing at Bengaluru.

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5. Per contra, learned counsel Sri.Madhusudhan.M.N., for respondent/husband would dispute the same and he submits that when children are at Tumakuru, the statement that petitioner/wife that she is residing at Bengaluru is not correct. Further, learned counsel would submit that distance between Tumakuru and Bengaluru is 70 kilometres and as such petitioner/wife can travel from Bengaluru to Tumakuru and visit her parents as well as children. Thus, he prays for dismissal of the Civil Petitions.

6. Having heard the learned counsel appearing for the parties and on perusal of the Civil Petition papers, I am of the view that petitioner/wife would be entitled for prayer as sought in both the Civil

Petitions.

7. In a petition filed under Section 24 of CPC for transfer of proceedings, more particularly, in matrimonial cases, the Court shall have to take note of the inconvenience or hardship that would be caused to the wife along with social and financial status of the parties.

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8. Admittedly, the proceedings initiated by petitioner/wife under Section 125 of Cr.P.C is pending before the Family Court at Bengaluru and so also CrI.Misc.No.256/2022 filed under Domestic Violence Act is also pending before the I MMTC at Bengaluru. It is also an admitted fact that proceedings initiated by respondent/husband for custody of children under Section 10 of 1890 Act and M.C.No.273/2022 filed for dissolution of marriage are pending before the Family Court at Tumakuru. The petitioner/wife claims that she is working at Bengaluru and she is residing at Bengaluru. Moreover, learned counsel for the petitioner/wife would submit that petitioner/wife would not seek for re-transfer of proceedings from Bengaluru to Tumakuru, if the petitions are allowed. It is submitted that respondent/husband is working as driver in KSRTC at Tumakuru.

9. Since the petitioner/wife is working at Bengaluru and she is residing at Bengaluru and since the proceedings initiated by wife are pending at Bengaluru, it NC: 2023:KHC:35597 would be appropriate to transfer the proceedings pending at Family Court at Tumakuru to Bengaluru. If the prayer of the petitioner/wife is not allowed, petitioner/wife would suffer more hardship and inconvenience. Hence, the following:

ORDER

1) Both the Civil Petitions filed under Section 24 of CPC are allowed.

2) The proceedings in G & W.C.No.4/2023 pending on the file of the I Additional Principal Judge, Family Court at Tumakuru and proceedings in M.C.No.273/2022 pending on the file of the Principal Judge, Family Court at Tumakuru are directed to be transferred to the Court of VI Additional Principal Family Court at Bengaluru for further consideration in accordance with law.

Sd/-

JUDGE NC CT:bms